		In Plaintiff's opposition, Plaintiff seeks to increase the amount of costs requested from $1,375.43 to $1,526.08. The court will not allow the increase as it is untimely. Code of Civil Procedure Section 1033.5(a)(13) provides for the recovery of "models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact." The court finds that Plaintiff has established that $969.42 was a reasonable amount of costs that Plaintiff actually incurred in photocopies of exhibit binders, which were necessary for litigation. (See Opp. Flores Decl., ¶ 27-28 & Ex. 11). Further, Plaintiff spent $401.06 in copies of medical records that were not used as trial exhibits, but Plaintiff has established that those copies were necessary for litigation. (*Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 667 (demonstratives and photocopies are awardable even if not used at trial). As such, the court allows costs for this item equal to $1,375.43. **<u>Item 14: E-Filing Service Fees</u>** Code of Civil Procedure Section 1033.5(a)(13) provides for the recovery of "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents." Defendant requests that the court tax all amounts sought under item 14 as unsubstantiated. In Plaintiff's opposition, the court finds that Plaintiff has substantiated $1,223.65 of the $1,773.55 in electronic filing and service fees incurred. As such, the court taxes $549.90 of the amount requested in Item 14. **<u>Item 15: Other</u>** Defendant seeks to tax $188.55 in parking and travel costs, $62.50 in court record copies, and $1,477.20 in investigation service of subpoenas. Code of Civil Procedure Section 1033.5(a)(13) provides for the recovery of: "[a]ny other item that is required to be awarded to the prevailing party pursuant to statute as an incident to prevailing in the action at trial or on appeal." Having reviewed Plaintiff's opposition, the court finds that $62.50 and $1,477.20 are not recoverable costs. As such, the court taxes $1,539.70 requested under item 15. Moving Defendant to give notice. Plaintiff is ordered to lodge an amended judgment within 10 days of this order, which updates the cost award based on the court's ruling.

2	Ticey v. JPMorgan Chase Bank N. A.	Plaintiffs Troy Ticey and Cynthia L. Ticey move for preliminary injunction enjoining all foreclosure and collection activities by Defendant JP Morgan Chase Bank, N.A., ("Defendant Chase") and enjoining Defendant Chase from reporting derogatory credit information to the credit reporting agencies. For the following reasons, the motion is **CONTINUED** to September 03, 2026, at 1:30 p.m. in this Department. As discussed in this court's previous order denying Plaintiffs' motion for preliminary injunction, to the extent Plaintiffs argue the deed of trust encumbering their property is defective and/or unenforceable due to WaMu's failure to obtain Plaintiff Cynthia Ticey's signature on the underlying loan documents, or due to fraud or unfair business practices by WaMu, Plaintiffs' claims are based on alleged misconduct by Defendant's predecessor, Washington Mutual Bank ("WaMu"). In September 2008, WaMu failed, the Federal Deposit Insurance Corporation ("FDIC") was appointed as receiver of the bank, and Defendant Chase later purchased some of WaMu's assets and liabilities. (*See Saffer v. JP Morgan Chase Bank, N.A.* (2014) 225 Cal.App.4th 1239, 1242-1243.) The Financial Institutions Reform, Recover, and Enforcement Act of 1989 ("FIRREA") provides a mandatory claims process, as a prerequisite to filing a civil claim against failed institutions such as WaMu and their successors. (*See* 12 U.S.C., § 1821(d)(13)(D).) United States Code, title 12, section 1821(d)(13)(D) provides that: "Except as otherwise provided in this subsection, no court shall have jurisdiction over—[¶] (i) any claim or action for payment from, or any action seeking a determination of rights with respect to, the assets of any depository institution for which the [Federal Deposit Insurance] Corporation has been appointed receiver, including assets which the Corporation may acquire from itself as such receiver; or [¶] (ii) any claim relating to any act or omission of such institution or the Corporation as receiver." "'[F]ailure to comply with the claims procedure bars any lawsuit against a failed depository institution.' [Citation.]" (*Saffer v. JP Morgan Chase Bank, N.A.* (2014) 225 Cal.App.4th 1239, 1247.) Specifically, failure to exhaust administrative remedies under FIRREA deprives courts of subject matter jurisdiction. (*Id.* at pp. 1248-1249.) Furthermore, "FIRREA exhaustion requirements apply even when a claim is asserted against a successor bank [such as JPMorgan Chase Bank], rather than the failed bank or the FDIC." (*Id.* at p. 1255; *see also Benson v. JPMorgan Chase, N.A.* (9th Cir. 2012) 673 F.3d 1207, 1214 [holding that "where a claim is functionally, albeit not formally against a depository institution for which the FDIC is a receiver, it is a 'claim' within the meaning of FIRREA's administrative claim process.") Plaintiffs submit evidence for the first time on Reply that they pursued an administrative claim before the FDIC. (*See* ROA # 276 [Not. of Correction, RJN] at Ex. A.) Because this evidence was not submitted with the moving papers, the court finds it just to provide Defendant the opportunity to address the evidence.